Program Name: Bodacious BBQ

Program ID : PRG-1015614

Distributor: BEN E KEITH-DC-DALLAS/FT WORTH
7650 WILL ROGERS BLVD
FORT WORTH TX 76140-6022

Effective Dates: January 1, 2015 through July 15, 2016

Price Type: Rebate

BEN E KEITH-DC-DALLAS/FT WORTH,

We are pleased to confirm pricing information for orders placed between January 1, 2015 and July 15, 2016 for the below named operators only. During this time period, product sold to BEN E KEITH-DC-DALLAS/FT WORTH for delivery to operators will receive the rebate type price to BEN E KEITH-DC-DALLAS/FT WORTH for the product(s) found in the pricing table (showing prices and rates).

The prices do not include any distributor mark-up or distributor surcharges. Distributor mark-ups and other distributor charges are to be negotiated solely between the distributor and operator.

This letter deals with pricing, compliance and confidentiality matters only and is not to be construed as a guarantee of product availability or supply.

Sincerely,

Lindsey Terrizzi

Kraft Representative

List of Authorized Operators

Operator Number	Operator Name	Address
0100031555	BODACIOUS BBQ	1005 US HIGHWAY 79 N HENDERSON TX 75652-6007
0100031688	BODACIOUS BBQ	7180 STATE HIGHWAY 42 N KILGORE TX 75662-5089
0100031683	BODACIOUS BBQ	1105 W UPSHUR AVE GLADEWATER TX 75647-2028
0100031682	BODACIOUS BBQ	1879 TROUP HWY TYLER TX 75701-5871
0100031687	BODACIOUS BBQ	4030 FRANKSTON HWY TYLER TX 75701-8907

PRG-1015614 - Rebate

SCC#	Product Description	Rebate Pays To: Distributor
00210000008200	KR 12/40Z POUCH SLAW DRESSING	$4.00 / CS
00210006331600	4/1GL MIRACLE WHIP DR	$2.50 / CS
00210006331626	1GA MW SANDWICH SPREAD 4CT	$2.50 / CS
00210006430800	KR 4/1 GA SALAD DRESSING SLAW	$4.00 / CS
00210006438200	KR 4/1 GA COLESLAW	$4.00 / CS
00210006637100	KR 200 7/16Z MIRACLE WHIP	$1.25 / CS
00210006637126	.4375Z MIRACLE WHIP 200 SS	$1.25 / CS
00430000139800	CT 15/2GA LEMONADE	$2.50 / CS
00430000139825	CT 15/2GA LEMONADE	$2.50 / CS

RATE INFORMATION
The contract rate per item will be stated as follows:
I. Headquarter Rebate defined as a percent unit basis.

DETAILS
I. This pricing confirmation applies to all net purchases of eligible products by qualified locations for the time periods specified above. Net purchases are defined as gross sales dollars less returns, credits, cash discounts, and taxes. Invoices not paid within terms or invoices on which unauthorized deductions are taken will not be included in net purchases. Net purchases do not include orders where the Contractee does not take title to the product.
II. Headquarter Rebate (%) – Selection for the unit basis value is customer invoice price.
III. Supporting Documentation is required for all Allowance requests:
> Distributor Name with company location and Contract Number
> Kraft contract number
> Shipment dates for each sales transaction
> Customer name, Distributor customer number, rate of rebate by product along with complete unit address information
> Kraft product code number or GTIN number
> Description of product item pack, size, item brand & UOM
> Total cases purchased
> Requested case rates per product and total rebate dollar amount per product
IV. Kraft Foodservice reserves the right in its discretion to amend, revise, or terminate this pricing confirmation at any time upon 15 days' notice.
V. This pricing confirmation does not automatically renew and is only applicable to the dates stated above.

PAYMENT CALCULATION & SETTLEMENT
I. Kraft will review Headquarter Rebate submissions for errors. Kraft may approve or deny submissions in its reasonable discretion.
II. Headquarter Rebate (%): The calculation will be determined by multiplying the Headquarter Rebate % by the customer invoice price.

CLAIM SUBMISSION
I. Billback claims should be directed to Blacksmith Applications. Please reference the Contract ID # above on claim submission.
II. Electronic submission is the preferred method for Billback claim settlement. Blacksmith Applications can accept electronic data transmission via EDI, FTP retrieval or email. Our file preference would be EDI, formatted text delimited, Excel, or CSV formats. If you are interested in electronic claims submission please send email to the address listed below.
III. Please include the Contract ID # in all communications
IV. Billback claims sent via email should be directed to the following address: kraftclaims@blacksmithapps.com
OR mail paper claims to:
Kraft Foods Group – Claims Processing
P. O. Box 15887
Pittsburgh, PA 15244
V. Collection of Allowances and/or Rebates: Subject to any provision to the contrary of these terms, Kraft will only pay claims for eligible goods sold within 365 days of the submitted date.

The information transmitted is intended only for the person or entity to which it is addressed and may contain confidential and/or privileged material. Any review, retransmission, dissemination or other use of, or taking of any action in reliance upon, this information by persons or entities other than the intended recipient is prohibited. If you received this in error, please contact the sender and delete the material from all computers.